

The Agricultural and Veterinary Chemicals Legislation Amendment (Streamlining Regulation) Bill 2018 lapsed when parliament was dissolved in early 2019.

A new Bill, the [Agricultural and Veterinary Chemicals Legislation Amendment \(Australian Pesticides and Veterinary Medicines Authority Board and Other Improvements\) Bill 2019](#), revives the measures from the lapsed Bill.

The lapsed Streamlining Regulation Bill was introduced into the Australian Parliament on 18 October 2018. Information about the lapsed Bill is available from the [Australian Parliament website](#).

The measures in the lapsed Bill were intended to:

- enable the use of new, simpler regulatory processes for chemicals of low regulatory concern (to simplify the approval of active constituents and labels, and the registration of certain products through prescribed approvals and registrations)
- provide the APVMA and industry with more flexibility to deal with certain types of new information provided when the APVMA is considering an application
- provide for extensions to limitation periods and protection periods as an incentive for chemical companies to register certain new uses of chemical products – particularly those uses (minor uses) with insufficient commercial return for chemical companies to normally add to the product label
- support computerised decision-making by the APVMA
- optimise risk communication about chemical products by improving the transparency of voluntary recalls
- harmonise the need to inform the APVMA of new information (where it relates to the safety, efficacy, trade and labelling criteria) so that the same obligations apply to all holders and applicants
- provide a more practical mechanism for dealing with minor variations in the constituents in a product, that normally occur in the manufacturing process
- provide the APVMA with more proportionate options for dealing with false or misleading information (suspension or cancellation of an approval or registration)
- clarify what information must be included on a label (address an inconsistency in label particulars)
- allow the holder of a suspended product to address the reason for the suspension
- fix anomalies in the regulation-making powers for the safety, efficacy, trade and labelling criteria
- simplify the APVMA's corporate reporting requirements
- make minor and machinery changes, including removal of unnecessary and redundant provisions.

Additional measures in the lapsed Streamlining Regulation Bill would have provided for a legislative instrument made by the APVMA to prescribe a scheme that would allow applicants and the APVMA to use accredited third party providers to undertake assessment services. This measure is not being pursued in the Agricultural and Veterinary Chemicals Legislation Amendment (Australian Pesticides and Veterinary Medicines Authority Board and Other Improvements) Bill 2019.

Background

Public consultation on an exposure draft of the lapsed Bill occurred between 11 July to 22 August 2018. Following consultation, several changes were made to the lapsed Bill. These changes included:

- omitting the proposal for provisional registration
- simplifying the proposed legislation for accrediting persons and removing the aggravated offence for contravening conditions of accreditation
- aligning voluntary recalls more closely with the Australian Consumer Law
- providing for internal review of an APVMA decision that is substituted for a computer-based decision
- simplifying the provisions for extending 'data protection' periods.

Submissions

A total of 17 submissions were received on an exposure draft of the Agricultural and Veterinary Chemicals Legislation Amendment (Streamlining Regulation) Bill 2018, including 3 provided in-confidence. Links to the public submissions can be found below.

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Document	Pages	File size
Accord Australasia Ltd PDF 	4	1.5 MB
Animal Medicines Australia PDF 	9	336 KB
Australian Competition and Consumer Commission 	4	431 KB
Australian Veterinary Association PDF 	12	192 KB
Brown Besier Parasitology Pty Ltd PDF 	2	105 KB
Competitive Advantage PDF 	14	143 KB
CropLife Australia PDF 	13	2.3 MB
Dairy Australia PDF 	9	696 KB
Grain Producers Australia PDF 	18	2.1 MB
Horticulture Innovation Australia Ltd PDF 	10	253 KB
National Farmers' Federation PDF 	12	257 KB
Queensland Department of Agriculture and Fisheries PDF 	3	377 KB
Veterinary Manufacturers and Distributors Association PDF 	8	94 KB
Western Australian Farmers Federation (Inc) PDF 	8	394 KB

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Consultation paper

Although the period for submissions has closed, the original consultation document and exposure draft is still available to view through the links below. The consultation paper included details of the proposed legislative changes when consultation commenced in July 2018.

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Read the exposure draft

The exposure draft set out the legislative changes as proposed when consultation commenced.

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